

reviewing the motion, preparing the opposition, opposing the *ex parte* related to this motion, and time expected to be spent reviewing the reply and preparing for/appearing at the hearing on this matter. (Wiener Decl. ¶ 2.) He details the time spent on each task and his billing rate. (*Ibid.*)

The Court finds that Plaintiff is the prevailing party. The Court also finds that Plaintiff's request for attorney's fees is reasonable. As such, the Court awards Plaintiff \$4,712.50 in attorney's fees.

Conclusion

Defendant's motion to expunge the lis pendens is **denied**. As the prevailing party, Plaintiff is awarded \$4,712.50 in attorneys' fees, payable within 30 days of entry of this order.

9. 9:00 AM CASE NUMBER: C24-01616

CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ

***HEARING ON MOTION FOR DISCOVERY PLAINTIFFS NOTICE OF MOTION AND MOTION TO COMPEL DEFENDANT UNITED PARCEL SERVICE, INC. TO PRODUCE CONTACT INFORMATION IN RESPONSE TO PLAINTIFFS INTERROGATORIES**

FILED BY: EVERS, BILLY

TENTATIVE RULING:

Summary

The following discovery motion is scheduled to be heard on by the Court on April 22, 2026 at 9:00 a.m. in Department 16:

1. Plaintiffs Billy Evers, Darien Robinson, and Tracy Turner ("Plaintiffs") Motion to Compel Defendant United Parcel Service, Inc. ("Defendant" or "UPS") to produce contact information in response to Plaintiffs' Interrogatories, filed on November 26, 2026.

The Court's register of events also demonstrate that Plaintiff has calendared hearings on the following discovery motions in Department 16 on September 16 and September 30, 2026.

2. Plaintiffs' Motion to Compel Defendant UPS Further Responses to Form Interrogatories- Employment and Special Interrogatories, filed on March 27, 2026.
3. Plaintiff's Motion to Compel Defendant UPS's Further Responses to Plaintiff's Request for Production of Documents, filed on March 27, 2026; and

The Court **vacates** all three (3) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling. No appearance is required at the hearing on April 22, 2026.

Background

This case involves allegations of race-based and sex/gender-based harassment, discrimination and retaliation against Plaintiffs Billy Evers, Darien Robinson and Tracy Turner (collectively "Plaintiffs") by Defendants while working at Defendant United Parcel Service, Inc.'s (hereinafter "Defendant UPS")

facility in Oakley, California. Plaintiff has filed three discovery motions. There is also a pending motion to compel arbitration to be hearing on April 22, 2025.

Analyses

The Parties are admonished that this Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues of this complex employment case, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

Accordingly, the Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court also makes this finding on the grounds that there are currently three (3) pending discovery motions on calendar in the matter, scheduled for April 22, September 16 and September 30, 2026. These motions and opposition papers filed to date consists of 2,068 pages. Based on the number of motions and discovery in dispute, the Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of these discovery disputes. A hearing on multiple discovery motions would strain the resources of this Department, which already manages the complex litigation calendar and over 2,700 active cases.

After considering the moving and opposition papers submitted by Counsel to date, and analyzing the applicable statutory and decisional authorities, and reviewing the motion calendar for Department 16, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on April 22, September 16 and September 30, 2026, and any and all subsequently filed discovery motions. The hearing calendared for these discovery motions are vacated from Department 16's calendar and are referred for further hearing to the Discovery Referee.
2. By no later than May 1, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, May 4, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties filing and opposing any discovery motion. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment, along with a copy of this order.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for April 22, September 16 and September 30, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.